



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Erin Gates *EMG*

DATE: March 5, 2025

SUBJECT: Professional Service Agreement Contract Modification No. 1 between the City of Cheyenne and Benchmark Engineers for additional engineering services for Christensen Road Design Modification project.

Please find attached Contract Modification No. 1 to the Professional Service Agreement between the City of Cheyenne and Benchmark Engineers for additional professional services related to the Christensen Road design modifications.

Engineering staff evaluated the scope of services and corresponding fee proposal for the professional services for this specific project. The services to be provided are construction administration associated with approved plans to address storm water drainage improvements, updated signage and lighting at the intersection of Christensen Road and East Pershing Boulevard, and to plat the rights-of-way for the corridor and annex the roadway into the City of Cheyenne.

Funding for this project will come from the 2017 Specific Purpose Optional Purpose Tax (6th Penny). The total professional services will be a cost not-to-exceed \$52,836.00. We respectfully request your approval of this contract modification.

CITY OF CHEYENNE
CONTRACT MODIFICATION

APPROVED as to form only:
By John Brodie at 4:54 pm, Mar 04, 2025

Contract Modification: #1
Project: Christensen Road Design Modification
Contract Number: 7520
Project Number: 180010
Contractor: Benchmark Engineers, PC
Date Prepared: March 3, 2025

The above-referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Provide professional services associated with bidding and construction administration services for drainage, signage, and intersection lighting upgrades. Provide professional services associated with platting and annexation of the rights-of-way of Christensen Road between Commerce Circle and US Highway 30. Services include preparation of all necessary documents and serving as agent for these actions. Services are further described in Exhibit A, which is incorporated herein by reference, but do not include any provisions that were manually stricken in that exhibit by the City Engineer, dated February 27, 2025.

II. New Contract Items

Provide services associated with bidding and construction administration for the improvements show on the approved EPR-24-00019 plans to address stormwater drainage, upgraded signage and replacement of lighting at the intersection of Christensen Road and E. Pershing Boulevard.

Platting un-platted rights-of-way of Christensen Road from Commerce Circle to US Highway 30. Annex un-annexed portions of Christensen Road rights-of-way between Commerce Circle and US Highway 30 into the City of Cheyenne.

III. Schedule

Project schedule is extended until the work is completed.

IV. Summary

Original Contract Amount	\$73,525.00
Previous Modifications	\$0.00
Contract Amount Prior to this Modification	\$73,525.00
This Modification	\$52,836.00
New Contract Amount	\$126,361.00

V. GL Account Information

If requesting a modification to the contract price, please list GL account number to cover the balance of this modification (if using more than (1) GL account, list the dollar amount for each respective account):

GL Number: 030-20-2033-42-21301 Amount: \$52,836.00

VI. Approvals

City Project Manager: _____ Date: _____

Consultant/Contractor: _____ Date: _____

City of Cheyenne DATE: _____

_____/_____
Mayor Patrick Collins /ATTEST: City Clerk Kylie Soden

EXHIBIT A



February 18, 2025

City of Cheyenne
Attn: Tom Cobb, PE, City Engineer
2101 O'Neil Avenue, Room 206
Cheyenne, WY 82001

**RE: Christensen Road Modifications - 2025
Scope of Work and Fee Proposal**

Dear Mr. Cobb,

BenchMark Engineers, PC (BME) is pleased to provide your office with this scope of work and fee estimate for the annexation and platting of Christensen Road, bridge approach repairs, and erosion repairs. Felsburg, Holt & Ullevig (FHU) will assist with the bridge repairs.

COMPLETION OF 2021 MODIFICATIONS

~~It is recommended that the previous contract for other modifications to this roadway be terminated due to the fact it is several years old and a new contract for the remaining work as well as the new work for this roadway be a new contract.~~

T. Cobb 2.27.25

TASK 1 - BIDDING AND CONSTRUCTION ADMINISTRATION

The previous modifications to Christensen Road have been completed, submitted, and an EPR approved. However, it was not bid out. BME will provide updates to the previously approved plans, finalize the bid documents, attend the pre-bid meeting, prepare any addendums and answer questions, attend the bid opening, attend the preconstruction meeting, review pay requests and other submittals by the contractor, provide part-time construction administration for the project, provide a punch list and as-constructed drawings.

In addition, there may be additional work items from the 2025 modifications that may need to be added to the 2021 modifications to bid out as a separate project. BME will combine the additional designs into the previously approved plans and include those items into a separate bid package.

BME will perform part-time construction inspection to verify the work is in general conformance with the plans and specifications. We will pay particular attention to the construction/installation of items that are to be buried, such as the storm sewer lines.

2025 MODIFICATIONS

TASK 2 - PLATTING AND PLATTING

In general, the work is based on several meetings we have had discussing the various options and approaches to the annexation and platting. I have attempted to get an answer from Microsoft to see if

they would agree to plat the area that is designated as a "Road Reservation" on their property and turn it into right-of-way, but after several attempts over several months to get an answer, I think it would be best to move on without including them.

Therefore, based on the approach we discussed at our last meeting, Steil Surveying Services, LLC has provided me with the additional costs to plat all necessary parts of the right-of-way that require platting between Highway 30 and Commerce Circle. In addition, we will annex into the City all areas within this same stretch into the City that is still currently in the County.

~~TASK 3 - ROADWAY/BRIDGE REPAIRS~~

~~Task A - Meetings, Project Management and Coordination~~

~~BME/FHU will visit the site to take field measurements and collect photos. BME/FHU will review all available as-built drawings, inspection reports, retaining wall shop drawings, construction inspection reports, and other documents relevant to the areas requiring repair. We anticipate two coordination meetings with the City, attended virtually by FHU, to confirm our design approach, and to review the plans and specifications. We anticipate submitting the plans to the City, addressing one round of comments, then submitting the final to be used for bidding.~~

~~Task B - Design and Specifications~~

~~BME/FHU will provide the design, plan production and specifications for the repairs as outlined by the Christensen Road Bridge inspection report and notes. This includes:~~

- ~~• Approach Roadway settlement repair~~
- ~~• Guardrail repair~~
- ~~• Bridge Railing deterioration repair~~
- ~~• Bridge Expansion Joint repair~~

~~In addition, we will prepare plans for the repairs/replacement of the curb & gutter and sidewalk impacted by the settling. Plans for the bridge repairs will be developed in Microstation, and plans for the other repairs will be developed in AutoCAD. Specifications will be supplementary to WYDOT Standard Specifications and the City of Cheyenne Standard Specifications, as needed, to support the materials and methods required for repairs.~~

~~It is anticipated that the bridge will need to stay open to traveling public during construction, therefore repair plans will show details of a phased approach. However, detailed roadway phasing and traffic control plans will be the responsibility of the contractor.~~

~~Task C - Design Services During Construction - Bridge Repairs~~

~~It is anticipated that BME/FHU will attend a pre-bid meeting, and resolve questions and clarifications. BME/FHU will review shop drawings and submittals from the contractor. BME/FHU will also review RFI's, change order requests and support field changes from the Contractor. Construction material testing and environmental services during construction are not included in this task and fee.~~

~~TASK 4 - EROSION REPAIRS~~

BME will survey the erosion areas in and near the detention pond. This will provide accurate information for the extent of the erosion. We will perform a site visit to assist in determining the best approach to repairing the erosion and minimizing the chances of it occurring again. Our plans for the repairs will be included in the entire plan set for bidding and construction. At this time, we are not anticipating providing any design or repair work within the Union Pacific Railroad right-of-way since that would require new coordination, permits, etc. with UP that can be extensive and time-consuming and delay the project even further. However, we can provide this service if the City wishes.

We have included time for GLM Design Group to assist with making sure we accommodate the anticipated velocities of the channel to ensure the solution selected for the erosion control will be adequate.

It is anticipated that this work will be combined with the 2021 modifications to be bid out as a separate project (separate from the bridge repairs).

We have included time in Task 1 fees to perform part-time on-site inspections during construction to verify the contractor is following the plans and specifications for the repairs.

~~TASK 5 - CONSTRUCTION ADMINISTRATION - 2025 MODIFICATIONS~~

Once the 2025 modifications to Christensen Road have been completed, submitted, and an EPR is approved, BME will finalize the bid documents, attend the pre-bid meeting, prepare any addendums and answer questions, attend the bid opening, attend the preconstruction meeting, review pay requests and other submittals by the contractor, provide part-time construction administration for the project, provide a punch list and as-constructed drawings.

It is assumed that the 2025 modifications will be bid out as a separate project than the 2021 modifications, with the possible exception of the work associated with Task 4.

BME will perform part-time construction inspection to verify the work is in general conformance with the plans and specifications.

FEES

The additional not to exceed fees needed to perform the additional work on this project are as follows:

Task 1 - Bidding & Construction Admin 2021 Modifications	= \$23,298	
Task 2 - Platting & Annexation	= \$29,538	
Task 3 - Bridge Repairs	= \$52,008	
Task 4 - Erosion Repairs	= \$14,878	
Task 5 - Construction Admin, incl pre and post construction	= \$11,802	
TOTAL	= \$131,524	\$52,836 T. Cobb 2.27.25

Therefore, we respectfully request a not-to-exceed contract in the amount of \$131,524 be issued and approved for the requested scope of work outlined above.

\$52,836

SCHEDULE

We anticipate the design work to be completed by June 2025 for construction bidding and execution in the summer of 2025.

As always, we appreciate this opportunity and look forward to working with the City on this project.

Sincerely,

A handwritten signature in blue ink, appearing to read 'Scott D. Larson', with a stylized flourish at the end.

Scott D. Larson, PE
President

Christensen Modifications

2025 RATES WYOMING													
Task 1 - Bidding & Construction Administration 2021 Modifications													
Principal	Sr. Prof.	Const. Mgr.	Proj. Engr.	Prof. II	Prof. I	Sr. Dnmr	Srv Mgr	CAD I	GPS	Critical	Stell	GLM	PHU
130	106	98	98	94	90	86	86	77	48	63	Surveying	Design Group	Expenses
8	24				18	18							
2	4												\$6,752
2	2												\$684
2	2												\$472
2	3	2											\$774
24	12	64											\$11,764
4	4	4											\$912
4	2	2				4							\$828
2	2	2											\$1,012
Phase Total													\$23,298.00
Task 2 - Planning & Amortization													
4						18					\$26,950		\$26,950
4													\$2,068
Phase Total													\$29,538.00
Task 3 - Bridge Repairs													
2					2								\$260
4													\$11,916
4						12							\$2,728
4													\$35,100
8					2								\$3,004
Phase Total													\$42,608.00
Task 4 - Erosion Repairs													
4					24	9	9						\$2,030
2					8	8						\$32	\$9,098
2					4	2							\$2,060
2					4	2							\$1,184
1					2	2							\$506
Phase Total													\$14,878.00
Task 5 - Construction Admin, incl pre and post construction													
1													\$326
8													\$10,054
1													\$326
1													\$572
1													\$524
Phase Total													\$11,802.00
Grand Total													
													\$134,834.00

\$52,836
T. 2.27.25

FELSBURG HOLT & ULLEVIG						FHU PROFESSIONAL FEE (LABOR)							TOTAL BY TASK	
						\$ 325	\$ 245	\$ 235	\$ 135	\$ 125	SUBTOTAL FHU LABOR (Hr.)	SUBTOTAL FHU LABOR (\$)	Other Direct Costs	
						\$ 325	\$ 245	\$ 235	\$ 135	\$ 125				
TASK DESCRIPTION						Hourly Rate (2025)								TOTAL
TASK 1: MEETINGS, PROJECT MANAGEMENT AND COORDINATION														\$ 10,970
Project Management						4	8					12	\$ 3,260	\$ 3,260
Site Visit							6	6	6			18	\$ 3,690	\$ 3,890
Document Review							4		2		6	\$ 1,250	\$ 1,250	
Coordination Meetings						2	4	4			10	\$ 2,570	\$ 2,570	
TASK 2: DESIGN & SPECIFICATIONS														\$ 35,100
Structural Repair Design						4	32			16		52	\$ 11,140	\$ 11,140
Repair Plans							16	48		16			\$ 17,200	\$ 17,200
Repair Specifications							12						\$ 2,940	\$ 2,940
Quantities								12		8			\$ 3,820	\$ 3,820
TASK 3: DESIGN SERVICES DURING CONSTRUCTION														\$ 3,890
Pre-Bid Meeting							2				2	\$ 490	\$ 490	
RFIs & Submittal Reviews							8	4		4	16	\$ 3,400	\$ 3,400	
						10	92	74	8	44	116	\$ 49,760	\$ 49,960	

T. Cobb 2.27.25